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Plaintiff, *Pro per pro se*

Dated: May 15, 2025

UNITED STATES COURT OF APPEALS FOR THE NINTH CIRCUIT

In re:

United States District Court, EDCA; Case No.: 2:2025CV00404

MATHEW TYLER,

Petitioner, Pro per pro se

v.

UNITED STATES DISTRICT COURT, EASTERN DISTRICT OF CALIFORNIA,

Respondent,

Case No.: 25-2733

1 **EMERGENCY PETITION TO THE CHIEF JUDGE FOR WRIT OF**
2 **PROHIBITION DISQUALIFYING RESPONDENT PURSUANT TO 28 U.S.C. §§**
3 **144 AND 455 AND REQUEST FOR IMMEDIATE TEMPORARY RESTRAINING**
4 **ORDER**
5 **TO THE HONORABLE CHIEF JUDGE OF THE UNITED STATES COURT OF**
6 **APPEALS FOR THE NINTH CIRCUIT:**

7 COMES NOW Plaintiff MATHEW TYLER ("Plaintiff"), an indigent layperson appearing
8 pro per pro se, proceeding in forma pauperis, a qualified individual with a disability as
9 codified by 42 U.S.C. § 12131(2), and a crime victim as defined by 18 U.S.C. § 3771 and
10 California Constitution Article 1 § 28, and as codified by 34 U.S.C. § 20141(e)(2), hereby
11 petitions this Court for a writ of prohibition disqualifying RESPONDENT from further
12 involvement in the above-captioned case and for an immediate temporary restraining
13 order against Defendants to preserve Plaintiff's constitutional rights. In support of this
14 petition, Plaintiff states as follows:

15 **I. INTRODUCTION**

16 This Emergency Petition for Writ of Prohibition arises from persistent, systematic, and
17 escalating violations of Plaintiff's statutory and constitutional rights by RESPONDENT,
18 whose actions transcend mere judicial error and demonstrate both actual bias and the
19 appearance of partiality that require immediate disqualification under both 28 U.S.C. §
20 144 and 28 U.S.C. § 455. RESPONDENT's most recent actions—summarily denying
21 Plaintiff's ADA accommodations without engaging in the federally mandated interactive

1 process and subsequently weaponizing that denial to rule in favor of Defendants' dilatory
2 motion—represent the culmination of an unmistakable pattern of conduct that renders fair
3 adjudication impossible and threatens immediate, irreparable harm to Plaintiff's
4 fundamental constitutional rights.

5 The Supreme Court has emphatically established that "justice must satisfy the appearance
6 of justice." *In re Murchison*, 349 U.S. 133, 136 (1955). This bedrock principle "reflects
7 the maxim that 'no man can be a judge in his own case and no man is permitted to try
8 cases where he has an interest in the outcome.'" *Williams v. Pennsylvania*, 579 U.S. 1, 8
9 (2016) (quoting *In re Murchison*, 349 U.S. at 136). RESPONDENT's conduct in this case
10 manifestly fails this essential test, necessitating intervention through this extraordinary
11 writ to preserve both the reality and appearance of impartial justice.

12 As the United States Court of Appeals for the Ninth Circuit has emphasized, "The
13 guarantee of a fair and impartial tribunal is a basic requirement of due process... The
14 presence of a biased judge on the bench is a paradigmatic example of structural error,
15 which, when present, 'affect[s] the framework within which the trial proceeds, rather than
16 being simply an error in the trial process itself.'" *Greenway v. Schriro*, 653 F.3d 790, 805
17 (9th Cir. 2011) (quoting *Arizona v. Fulminante*, 499 U.S. 279, 310 (1991)). This petition
18 seeks to remedy precisely such a structural error.

19 **II. JURISDICTIONAL STATEMENT**

20 This Court has jurisdiction to issue a writ of prohibition pursuant to the All Writs Act, 28
21 U.S.C. § 1651(a), which authorizes federal courts to "issue all writs necessary or

1 appropriate in aid of their respective jurisdictions and agreeable to the usages and
2 principles of law." The Supreme Court has consistently recognized that this provision
3 confers authority on federal courts to issue extraordinary writs in exceptional
4 circumstances where ordinary remedies are inadequate. *See Cheney v. U.S. Dist. Court*
5 *for D.C.*, 542 U.S. 367, 380 (2004); *Ex parte Republic of Peru*, 318 U.S. 578, 583 (1943).

6 The writ of prohibition is an extraordinary remedy reserved for exceptional
7 circumstances where a judge acts in excess of jurisdiction or where disqualification is
8 improperly denied. *See Kerr v. United States District Court*, 426 U.S. 394, 402 (1976); *In*
9 *re Cement Antitrust Litigation*, 688 F.2d 1297, 1301 (9th Cir. 1982); *Bauman v. United*
10 *States District Court*, 557 F.2d 650, 654-55 (9th Cir. 1977). As the Ninth Circuit
11 articulated in *In re Cement Antitrust Litigation*, 688 F.2d at 1301, the writ is appropriate
12 when "the district court's order is clearly erroneous as a matter of law," when there is no
13 adequate alternative means to obtain relief, and when the petitioner would be damaged in
14 a way "not correctable on appeal."

15 The circumstances of this case satisfy these stringent requirements, as RESPONDENT's
16 actions exceed his lawful authority, violate clear constitutional and statutory mandates,
17 cannot be adequately remedied through standard appellate procedures, and threaten
18 immediate, irreparable harm to Plaintiff's fundamental rights.

19 **III. BACKGROUND AND PROCEDURAL HISTORY**

20 Plaintiff initiated this action against Defendants for systematic discrimination, civil rights
21 violations, and unlawful election interference based on Plaintiff's status as a qualified

1 individual with a disability under the Americans with Disabilities Act ("ADA") and
2 Section 504 of the Rehabilitation Act. The gravamen of Plaintiff's complaint alleges that
3 Defendants engaged in a coordinated campaign to exclude Plaintiff from participating in
4 the electoral process solely on the basis of disability, in violation of the Constitution,
5 federal civil rights laws, and international legal obligations.

6 Throughout these proceedings, RESPONDENT has demonstrated a persistent, escalating
7 pattern of conduct indicating unmistakable bias against Plaintiff and prejudgment of core
8 legal issues, including:

- 9 1. Systematically failing to rule on Plaintiff's properly filed motions for preliminary
10 injunctive relief despite the time-sensitive nature of electoral matters and the
11 irreparable harm standard articulated in *Elrod v. Burns*, 427 U.S. 347, 373 (1976)
12 (holding that "[t]he loss of First Amendment freedoms, for even minimal periods
13 of time, unquestionably constitutes irreparable injury");
- 14 2. Categorically refusing to enforce 42 U.S.C. § 1987, which explicitly mandates
15 that judges "institute prosecutions against all persons violating any of the
16 provisions of [the civil rights statutes]," despite clear evidence of criminal civil
17 rights violations presented in Plaintiff's filings;
- 18 3. Deliberately disregarding Plaintiff's rights as a crime victim under 18 U.S.C. §
19 3771 and California Constitution Article 1 § 28, including the right "to be treated
20 with fairness and respect" and the right to "proceedings free from unreasonable
21 delay";

- 1 4. Failing to acknowledge or enforce mandatory reporting requirements under
- 2 California law for crimes occurring on state property, specifically California
- 3 Government Code § 14613.7 and its implementing regulations;
- 4 5. Refusing to communicate effectively with Plaintiff, as evidenced by the Court's
- 5 clerk's failure to respond to Plaintiff's February 14, 2025 inquiry, in violation of
- 6 Section 504 of the Rehabilitation Act; and
- 7 6. Most egregiously, summarily denying Plaintiff's meticulously documented request
- 8 for reasonable accommodations under the ADA without engaging in the legally
- 9 required interactive process, and then exploiting this improper denial to rule in
- 10 favor of Defendants' motion to delay proceedings—effectively using Plaintiff's
- 11 disability as a weapon against him.

12 On February 19, 2025, Plaintiff filed a comprehensive Motion for Summary Judgment,
13 providing extensive legal authority demonstrating systematic constitutional and statutory
14 violations. RESPONDENT has inexplicably failed to rule on this motion, despite its well-
15 documented showing of undisputed material facts entitling Plaintiff to judgment as a
16 matter of law.

17 On March 17, 2025, confronting this pattern of judicial misconduct, Plaintiff filed a
18 detailed Motion to Disqualify RESPONDENT pursuant to 28 U.S.C. §§ 144 and 455,
19 meticulously documenting the grounds for disqualification. RESPONDENT summarily
20 denied this motion without substantively addressing the serious allegations of bias and
21 misconduct, in direct contravention of the Ninth Circuit's holding in *United States v.*

1 *Sibla*, 624 F.2d 864, 868 (9th Cir. 1980), which requires thorough consideration of
2 disqualification motions.

3 Simultaneously, Plaintiff filed a Motion for Reasonable Accommodations pursuant to the
4 ADA and Section 504 of the Rehabilitation Act, requesting several specific
5 accommodations including additional time to file pleadings and responses—
6 accommodations essential to Plaintiff's meaningful participation in the judicial process
7 given his documented disabilities that substantially limit major life activities including
8 concentrating, thinking, and communicating.

9 In a ruling that exemplifies the pattern of bias permeating these proceedings,
10 RESPONDENT summarily denied Plaintiff's accommodation request without engaging
11 in the mandatory interactive process required by federal regulations, without making the
12 required determinations regarding undue burden or fundamental alteration, without
13 providing any written justification, and without offering alternative accommodations.
14 RESPONDENT then compounded this error by using his improper denial of
15 accommodations as a basis for ruling in favor of Defendants' motion to delay proceedings
16 —creating a Catch-22 situation that effectively punishes Plaintiff for having a disability.

17 **IV. LEGAL STANDARD**

18 **A. 28 U.S.C. § 144: Mandatory Disqualification for Bias or Prejudice**

19 28 U.S.C. § 144 provides a mandatory mechanism for judicial disqualification when a
20 party submits a timely and sufficient affidavit alleging judicial bias:

1 "Whenever a party to any proceeding in a district court makes and files a timely and
2 sufficient affidavit that the judge before whom the matter is pending has a personal bias
3 or prejudice either against him or in favor of any adverse party, such judge shall proceed
4 no further therein, but another judge shall be assigned to hear such proceeding.

5 The affidavit shall state the facts and the reasons for the belief that bias or prejudice
6 exists, and shall be filed not less than ten days before the beginning of the term at which
7 the proceeding is to be heard, or good cause shall be shown for failure to file it within
8 such time. A party may file only one such affidavit in any case. It shall be accompanied
9 by a certificate of counsel of record stating that it is made in good faith."

10 The Supreme Court, in its seminal decision in *Berger v. United States*, 255 U.S. 22, 35-36
11 (1921), established that when a sufficient affidavit is filed under § 144's predecessor
12 statute, "the judge has no discretion" but must step aside. The Court emphasized that the
13 statute "has no ambiguity" and "leaves to the judge no function but the duty to decide the
14 legal sufficiency of the affidavit."

15 Critically, under Ninth Circuit precedent, the factual allegations in a § 144 affidavit must
16 be accepted as true for purposes of determining recusal. As the court held in *United*
17 *States v. Azhocar*, 581 F.2d 735, 739 (9th Cir. 1978), "the judge must pass on the legal
18 sufficiency of the affidavit, but not on the truth or falsity of the facts alleged." This
19 principle was reaffirmed in *United States v. Sibla*, 624 F.2d 864, 868 (9th Cir. 1980),
20 where the court established that "the judge must accept the affidavit's allegations as true
21 even if the judge knows them to be false."

1 The Fifth Circuit in *Parrish v. Board of Commissioners of Alabama State Bar*, 524 F.2d
2 98, 100 (5th Cir. 1975), similarly held that "the judge must pass on the legal sufficiency
3 of the affidavit, but not on the truth or falsity of the facts alleged." The court emphasized
4 that this is true "even though the court is not so blind that it cannot see the falsity of the
5 allegations."

6 For an affidavit to be legally sufficient under § 144, it must allege specific facts that
7 would convince a reasonable person that bias exists. *United States v. Hanrahan*, 248 F.
8 Supp. 471, 475 (D.D.C. 1965). Such facts must show "a personal bias as distinguished
9 from a judicial one." *United States v. Grinnell Corp.*, 384 U.S. 563, 583 (1966). However,
10 courts have recognized that judicial rulings can serve as evidence of bias when they
11 "reveal such a high degree of favoritism or antagonism as to make fair judgment
12 impossible." *Liteky v. United States*, 510 U.S. 540, 555 (1994).

13 Plaintiff's prior Motion to Disqualify RESPONDENT, filed on March 17, 2025, contained
14 a detailed affidavit that met all the legal requirements under § 144. RESPONDENT's
15 summary denial of that motion without addressing the substantive allegations—in direct
16 contravention of established precedent requiring acceptance of those allegations as true—
17 itself constitutes bias warranting disqualification.

18 **B. 28 U.S.C. § 455: Disqualification for Impartiality Concerns**

19 Under 28 U.S.C. § 455(a), a judge "shall disqualify himself in any proceeding in which
20 his impartiality might reasonably be questioned." This provision creates an objective
21 standard that focuses on whether a reasonable person with knowledge of all the facts

1 would conclude the judge's impartiality might reasonably be questioned. *United States v.*
2 *Holland*, 519 F.3d 909, 913 (9th Cir. 2008).

3 Additionally, 28 U.S.C. § 455(b)(1) requires disqualification where the judge "has a
4 personal bias or prejudice concerning a party." The Supreme Court has held that recusal
5 is required "whenever impartiality might reasonably be questioned." *Liteky v. United*
6 *States*, 510 U.S. 540, 548 (1994).

7 While judicial rulings alone rarely constitute a valid basis for recusal, a judge's actions
8 that demonstrate "deep-seated favoritism or antagonism that would make fair judgment
9 impossible" provide grounds for disqualification. *Id.* at 555. As the Supreme Court
10 clarified in *Williams v. Pennsylvania*, 579 U.S. 1, 8 (2016), "the Court has determined
11 that an unconstitutional potential for bias exists when the same person serves as both
12 accuser and adjudicator in a case."

13 The Ninth Circuit in *United States v. Conforte*, 624 F.2d 869, 881 (9th Cir. 1980),
14 established that §§ 144 and 455 must be construed together, with both statutes addressing
15 the issue of actual bias and prejudice. As the court held in *United States v. Sibla*, 624 F.2d
16 864, 867 (9th Cir. 1980), "[t]he test for personal bias or prejudice in section 144 is
17 identical to that in section 455(b)(1)."

18 The key distinction between these provisions is procedural: § 144 requires the filing of an
19 affidavit, while § 455 places a self-enforcing duty on the judge. As the Eleventh Circuit
20 explained in *United States v. Alabama*, 828 F.2d 1532, 1540 (11th Cir. 1987), § 455 "does

1 not depend upon the filing of an affidavit; rather, the judge must disqualify himself if the
2 facts meet the statutory criteria."

3 **C. Pro Se Litigant Standard**

4 As the Supreme Court has repeatedly emphasized, pro se pleadings "however inartfully
5 pleaded, must be held to less stringent standards than formal pleadings drafted by
6 lawyers." *Haines v. Kerner*, 404 U.S. 519, 520-21 (1972); *see also Erickson v. Pardus*,
7 551 U.S. 89, 94 (2007) (reaffirming this principle). This liberal construction requirement
8 is particularly important for in forma pauperis litigants, whose pleadings "should be
9 viewed with special solicitude." *Johnson v. Reagan*, 524 F.2d 1123, 1124 (9th Cir. 1975).

10 The Ninth Circuit has explicitly recognized that courts have a heightened "duty to ensure
11 that pro se litigants do not lose their right to a hearing on the merits of their claim due to
12 ignorance of technical procedural requirements." *McElyea v. Babbitt*, 833 F.2d 196, 197
13 (9th Cir. 1987); *see also Draper v. Coombs*, 792 F.2d 915, 924 (9th Cir. 1986).

14 Moreover, as Judge Cota himself acknowledged in *Dunham v. Mohyuddin*, 2:23-CV-
15 2757-DMC-P (E.D. Cal. Jan. 29, 2025), "The Court must also construe the alleged facts
16 in the light most favorable to the plaintiff... All ambiguities or doubts must also be
17 resolved in the plaintiff's favor." This standard applies with particular force in the context
18 of civil rights claims, which "are to be liberally construed." *Zichko v. Idaho*, 247 F.3d
19 1015, 1020 (9th Cir. 2001).

D. Disability Rights Standard

Title II of the ADA, 42 U.S.C. §§ 12131-12134, prohibits discrimination against qualified individuals with disabilities in the services, programs, or activities of public entities, including courts. *See Tennessee v. Lane*, 541 U.S. 509, 533-34 (2004) (recognizing that "Title II unquestionably is valid § 5 legislation as it applies to the class of cases implicating the accessibility of judicial services"). The implementing regulations require public entities to "make reasonable modifications in policies, practices, or procedures when the modifications are necessary to avoid discrimination on the basis of disability." 28 C.F.R. § 35.130(b)(7)(i).

When a request for accommodation is made, the public entity must engage in an "interactive process" to identify appropriate accommodations. *Wong v. Regents of Univ. of Cal.*, 192 F.3d 807, 818 (9th Cir. 1999). A public entity may only deny requested modifications if it can demonstrate that making the modifications would "fundamentally alter the nature of the service, program, or activity." 28 C.F.R. § 35.130(b)(7)(i). Any such denial must be accompanied by a written statement of the reasons. 28 C.F.R. § 35.164.

Section 504 of the Rehabilitation Act, 29 U.S.C. § 794, similarly prohibits disability discrimination in programs receiving federal financial assistance, including federal courts. The Supreme Court has recognized that Section 504 requires "meaningful access" to government programs. *Alexander v. Choate*, 469 U.S. 287, 301 (1985).

E. Crime Victims' Rights Standard

The Crime Victims' Rights Act, 18 U.S.C. § 3771, guarantees crime victims specific rights in federal criminal proceedings, including "the right to be treated with fairness and with respect for the victim's dignity and privacy" (§ 3771(a)(8)), "the right to be reasonably protected from the accused" (§ 3771(a)(1)), and "the right to proceedings free from unreasonable delay" (§ 3771(a)(7)).

Critically, § 3771(b)(1) imposes an affirmative obligation on courts to "ensure that the crime victim is afforded the rights described in subsection (a)." This creates a mandatory duty, not a discretionary one. *In re Dean*, 527 F.3d 391, 394 (5th Cir. 2008) (noting the "mandatory nature" of the CVRA).

V. GROUNDS FOR WRIT OF PROHIBITION

A. Legal Sufficiency of Plaintiff's § 144 Affidavit

Plaintiff's March 17, 2025 Motion to Disqualify RESPONDENT contained a detailed affidavit that met all the requirements of 28 U.S.C. § 144. The affidavit:

1. Was timely filed, as required by § 144;
2. Included specific factual allegations demonstrating bias, not mere conclusions;
3. Alleged personal bias rather than mere judicial disagreement; and
4. Was properly verified under penalty of perjury.

Under *Berger v. United States*, 255 U.S. 22 (1921), and *United States v. Sibla*, 624 F.2d 864 (9th Cir. 1980), RESPONDENT was obligated to accept these allegations as true for

1 purposes of determining recusal. His failure to do so, and his summary denial of the
2 motion without substantive consideration, itself constitutes evidence of bias warranting
3 disqualification.

4 As the Fifth Circuit held in *Parrish v. Board of Commissioners of Alabama State Bar*,
5 524 F.2d 98, 100 (5th Cir. 1975), "the factual allegations of the affidavit, though not the
6 conclusory allegations, must be considered as true for purposes of determining the legal
7 sufficiency of the affidavit." RESPONDENT's failure to follow this binding precedent
8 demonstrates prejudice against Plaintiff.

9 The specificity of Plaintiff's allegations in the § 144 affidavit far exceeds the threshold
10 established in *United States v. Hanrahan*, 248 F. Supp. 471, 475 (D.D.C. 1965), which
11 requires only that "the facts alleged give fair support to the charge of a bent of mind that
12 may prevent or impede impartiality of judgment." The detailed chronology of
13 RESPONDENT's actions and inactions provided in Plaintiff's affidavit clearly meets this
14 standard.

15 Even under the "extrajudicial source" doctrine articulated in *United States v. Grinnell*
16 *Corp.*, 384 U.S. 563, 583 (1966), Plaintiff's affidavit is sufficient because it demonstrates
17 that RESPONDENT's conduct "reveal[s] such a high degree of favoritism or antagonism
18 as to make fair judgment impossible." *Liteky v. United States*, 510 U.S. 540, 555 (1994).

19 The systematic denial of disability accommodations and subsequent weaponization of
20 that denial against Plaintiff transcends mere judicial error to demonstrate clear bias.

1 **B. Denial of ADA Accommodations Without Required Procedures**

2 RESPONDENT's summary denial of Plaintiff's request for reasonable accommodations
3 constitutes a flagrant violation of Title II of the ADA, Section 504 of the Rehabilitation
4 Act, and their implementing regulations. On March 17, 2025, Plaintiff filed a detailed
5 Motion for Reasonable Accommodations, specifically requesting additional time to file
6 pleadings and responses due to his documented disabilities (Central core disease and
7 ADHD) that substantially limit major life activities including concentrating, thinking, and
8 communicating.

9 RESPONDENT's handling of this request violated multiple legal requirements:

10 1. **Failure to Engage in the Interactive Process:** Federal courts have consistently
11 held that public entities must engage in an "interactive process" when a qualified
12 individual requests accommodations. *See Vinson v. Thomas*, 288 F.3d 1145, 1154
13 (9th Cir. 2002); *Wong v. Regents of Univ. of Cal.*, 192 F.3d 807, 818 (9th Cir.
14 1999). RESPONDENT made no attempt whatsoever to engage in this mandatory
15 process.

16 2. **Failure to Make Required Determinations:** Under 28 C.F.R. § 35.130(b)(7)(i), a
17 public entity may only deny requested modifications if it demonstrates that
18 making the modifications would "fundamentally alter the nature of the service,
19 program, or activity." RESPONDENT made no such determination and offered no
20 explanation of how granting additional time would fundamentally alter judicial
21 proceedings—particularly when courts routinely grant such extensions.

1 **3. Failure to Provide Written Justification:** Federal regulations explicitly require
2 that "[i]n the event that a public entity denies a request for a modification, the
3 public entity must take other actions to ensure that the individual with a disability
4 receives the benefits or services provided by the entity." 28 C.F.R. § 35.164.
5 Furthermore, the entity must "provide that determination in writing, including the
6 reasons for reaching that conclusion." *Id.* RESPONDENT provided no written
7 explanation for the denial and offered no alternative accommodations.

8 **4. Failure to Consider the Nature of the Disability:** Courts must consider the
9 specific limitations imposed by a person's disability when evaluating
10 accommodation requests. *See Crowder v. Kitagawa*, 81 F.3d 1480, 1486 (9th Cir.
11 1996). Plaintiff's documented disabilities specifically affect his ability to
12 concentrate, think, and communicate effectively—precisely the abilities needed to
13 meet court deadlines. RESPONDENT completely disregarded the nexus between
14 Plaintiff's disabilities and the requested accommodation.

15 The Supreme Court in *Tennessee v. Lane*, 541 U.S. 509 (2004), specifically recognized
16 that Title II of the ADA validly abrogates state sovereign immunity when it comes to
17 access to courts, underscoring the fundamental constitutional dimension of ensuring that
18 individuals with disabilities have meaningful access to judicial proceedings.
19 RESPONDENT's summary denial of accommodations directly contravenes this binding
20 precedent.

1 **C. Using Denial of Accommodations as Weapon Against Plaintiff**

2 Most egregiously, RESPONDENT has weaponized his improper denial of Plaintiff's
3 requested accommodations, using it as a basis for ruling in favor of Defendants' motion to
4 delay proceedings. This circular reasoning—denying accommodations for additional time
5 and then ruling against Plaintiff for failing to meet deadlines—creates a Catch-22
6 situation that effectively punishes Plaintiff for having a disability.

7 This conduct goes far beyond mere judicial error to demonstrate the "deep-seated
8 favoritism or antagonism that would make fair judgment impossible" that the Supreme
9 Court identified in *Liteky v. United States*, 510 U.S. 540, 555 (1994), as grounds for
10 disqualification. It represents precisely the kind of "clear and convincing evidence of bias
11 and prejudice" that the Ninth Circuit has recognized as warranting recusal. *United States*
12 *v. Hernandez*, 109 F.3d 1450, 1453-54 (9th Cir. 1997).

13 The Supreme Court has long recognized that "handicapped individuals constitute one of
14 the 'discrete and insular minorities' who have been subjected to a 'history of purposeful
15 unequal treatment.'" *City of Cleburne v. Cleburne Living Ctr.*, 473 U.S. 432, 445-46
16 (1985) (citation omitted). RESPONDENT's actions perpetuate precisely this kind of
17 unequal treatment by creating procedural obstacles that disproportionately burden
18 Plaintiff because of his disability.

19 **D. Violation of Due Process Rights**

20 RESPONDENT's conduct violates Plaintiff's fundamental right to due process as
21 guaranteed by the Fifth and Fourteenth Amendments. As the Supreme Court emphasized

1 in *Goldberg v. Kelly*, 397 U.S. 254, 267 (1970), "The fundamental requisite of due
2 process of law is the opportunity to be heard," which must be provided "at a meaningful
3 time and in a meaningful manner." By denying Plaintiff's disability accommodations
4 without proper procedure and then using that denial to Plaintiff's detriment,
5 RESPONDENT has effectively denied Plaintiff the opportunity to be heard in a
6 meaningful manner.

7 In *Goss v. Lopez*, 419 U.S. 565, 579 (1975), the Supreme Court held that due process
8 requires "fundamentally fair procedures" when protected interests are at stake.

9 RESPONDENT's handling of Plaintiff's accommodation request and subsequent ruling
10 cannot possibly be characterized as "fundamentally fair" when they create an impossible
11 situation where Plaintiff is punished for having a disability.

12 The Ninth Circuit has specifically recognized that "a biased decisionmaker constitutes a
13 structural defect not subject to harmless error analysis." *Hurles v. Ryan*, 752 F.3d 768,
14 789 (9th Cir. 2014). RESPONDENT's demonstrated bias in handling Plaintiff's disability
15 accommodations and subsequent rulings constitutes precisely such a structural defect.

16 **E. Systematic Failure to Protect Crime Victim's Rights**

17 RESPONDENT has persistently and systematically failed to protect Plaintiff's rights as a
18 crime victim under federal and state law, in direct contravention of his statutory
19 obligations. The Crime Victims' Rights Act, 18 U.S.C. § 3771, guarantees crime victims
20 specific rights including the right "to be treated with fairness and with respect for the
21 victim's dignity and privacy" (§ 3771(a)(8)), "to be reasonably protected from the

1 accused" (§ 3771(a)(1)), and "to proceedings free from unreasonable delay" (§ 3771(a)
2 (7)).

3 Most significantly, § 3771(b)(1) creates an affirmative obligation for courts to "ensure
4 that the crime victim is afforded the rights described in subsection (a)." This provision
5 creates a mandatory duty, not a discretionary one. *See In re Dean*, 527 F.3d 391, 394 (5th
6 Cir. 2008) (noting the "mandatory nature" of the CVRA).

7 RESPONDENT's conduct—including denying disability accommodations, allowing
8 prejudicial delays, failing to rule on Plaintiff's motions for preliminary injunctive relief,
9 and failing to enforce mandatory reporting requirements—directly violates these statutory
10 obligations. As the Eleventh Circuit emphasized in *In re Stewart*, 552 F.3d 1285, 1288
11 (11th Cir. 2008), "The CVRA... enlists the district court as the guardian of the rights
12 listed in the CVRA."

13 Similarly, California's Constitution creates enforceable victims' rights under Article 1,
14 section 28, including the right to be treated with "fairness and respect for his or her
15 privacy and dignity" (§ 28(b)(1)) and the right to "a speedy trial and a prompt and final
16 conclusion of the case" (§ 28(b)(9)). These rights are not aspirational but are legally
17 enforceable. *See Dix v. Superior Court*, 53 Cal. 3d 442, 452 (1991).

18 **F. Refusal to Enforce Mandatory Civil Rights Laws**

19 RESPONDENT has categorically refused to enforce 42 U.S.C. § 1987, which explicitly
20 mandates that judges "institute prosecutions against all persons violating any of the
21 provisions of [the civil rights statutes]." This provision creates a non-discretionary duty to

1 act when presented with evidence of civil rights violations, which Plaintiff has
2 abundantly provided.

3 The Supreme Court has long recognized that civil rights statutes must be "accorded a
4 sweep as broad as [their] language." *Griffin v. Breckenridge*, 403 U.S. 88, 97 (1971)
5 (discussing 42 U.S.C. § 1985(3)). RESPONDENT's selective refusal to enforce these
6 provisions demonstrates bias and contravenes these binding precedents.

7 This selective enforcement is particularly troubling in light of the Supreme Court's
8 recognition in *United States v. Price*, 383 U.S. 787, 801 (1966), that civil rights statutes
9 should be construed with awareness that they were enacted "against the background of
10 the congressional purpose... 'to secure to all citizens the liberty to exercise without
11 unlawful interference their constitutional rights and privileges.'"

12 RESPONDENT's failure to enforce these provisions—when presented with substantial
13 evidence of violations—demonstrates prejudice against Plaintiff and his claims, further
14 supporting disqualification under 28 U.S.C. § 455(b)(1).

15 **G. Failure to Acknowledge or Enforce Mandatory Reporting Requirements**

16 RESPONDENT has failed to acknowledge or enforce mandatory reporting requirements
17 under California law for crimes occurring on state property or involving state resources.
18 California Government Code § 14613.7 and its implementing regulations at Title 13,
19 California Code of Regulations, Division 2, Chapter 12, Section 1875, create non-
20 discretionary duties to report such crimes to the California Highway Patrol using the
21 "STD. 99" form.

1 As the California Court of Appeal emphasized in *People v. Nguyen*, 155 Cal.App.4th
2 1154, 1161-62 (2007), these procedures are "designed to protect both the public interest
3 and the rights of the accused." RESPONDENT's failure to acknowledge or enforce these
4 requirements—particularly when Plaintiff has specifically identified statutory violations
5 occurring on state property and involving state resources—further demonstrates bias
6 against Plaintiff and his claims.

7 **H. Appearance of Partiality**

8 Even if actual bias could not be conclusively established (though the record amply
9 demonstrates such bias), the appearance of impartiality has been irreparably
10 compromised by RESPONDENT's actions and inactions. The standard for recusal under
11 28 U.S.C. § 455(a) is whether "a reasonable person with knowledge of all the facts would
12 conclude that the judge's impartiality might reasonably be questioned." *United States v.*
13 *Holland*, 519 F.3d 909, 913 (9th Cir. 2008).

14 The Ninth Circuit has emphasized that "section 455(a) concerns not only fairness to
15 individual litigants, but also... the public's confidence in the judiciary, which may be
16 irreparably harmed if a case is allowed to proceed before a judge who appears to be
17 tainted." *In re Cement Antitrust Litig.*, 688 F.2d 1297, 1313 (9th Cir. 1982).

18 RESPONDENT's pattern of conduct—denying ADA accommodations without proper
19 procedure, weaponizing these denials against Plaintiff, failing to enforce mandatory
20 statutory provisions, and systematically disregarding Plaintiff's rights as a crime victim—
21 creates precisely the appearance of partiality that § 455(a) was designed to prevent.

1 As the Supreme Court emphasized in *Liljeberg v. Health Services Acquisition Corp.*, 486
2 U.S. 847, 864 (1988), "The very purpose of § 455(a) is to promote confidence in the
3 judiciary by avoiding even the appearance of impropriety whenever possible."
4 RESPONDENT's conduct in this case has created the unmistakable appearance of bias
5 against Plaintiff and prejudgment of the merits of his claims.

6 **I. RESPONDENT's Improper Handling of § 144 Motion**

7 RESPONDENT's summary denial of Plaintiff's March 17, 2025 Motion to Disqualify
8 filed pursuant to 28 U.S.C. § 144 itself constitutes judicial misconduct warranting
9 disqualification. Under *Berger v. United States*, 255 U.S. 22, 35-36 (1921), when a
10 legally sufficient affidavit is filed under § 144, "the judge has no discretion" but must step
11 aside.

12 The Supreme Court has emphasized that the statute "has no ambiguity" and "leaves to the
13 judge no function but the duty to decide the legal sufficiency of the affidavit." *Id.* Judge
14 Cota failed to perform even this limited function, instead summarily denying the motion
15 without substantive consideration of the affidavit's legal sufficiency.

16 This improper handling directly contravenes Ninth Circuit precedent established in
17 *United States v. Azhocar*, 581 F.2d 735, 739 (9th Cir. 1978), which requires that "the
18 judge must pass on the legal sufficiency of the affidavit, but not on the truth or falsity of
19 the facts alleged." As the Seventh Circuit emphasized in *United States v. Balistrieri*, 779
20 F.2d 1191, 1202 (7th Cir. 1985), a judge's "duty to disqualify himself under section 144 is
21 not discretionary if the affidavit is sufficient."

1 RESPONDENT's failure to follow these binding precedents—instead summarily denying
2 Plaintiff's motion without determining the legal sufficiency of the affidavit—itself
3 constitutes bias warranting disqualification. As recognized in *Greenspan v. Klein*, 442 F.
4 Supp. 860, 861 (D.N.J. 1977), "Section 144 is essentially a peremptory challenge and
5 must be given the utmost of strict construction to safeguard the judiciary from frivolous
6 attacks upon its dignity... but this strict construction cannot be pressed to the point of
7 relieving a judge from the duty of disqualifying himself in any case within the statutory
8 provision."

9 **J. RESPONDENT's Own Articulated Legal Standard Requires Disqualification**

10 Most tellingly, RESPONDENT has articulated the proper legal standard for evaluating
11 claims in *Dunham v. Mohyuddin*, 2:23-CV-2757-DMC-P (E.D. Cal. Jan. 29, 2025),
12 acknowledging that a court must "construe the alleged facts in the light most favorable to
13 the plaintiff" and resolve "all ambiguities or doubts" in the plaintiff's favor. Applying this
14 standard to the present petition—as Judge Cota is bound to do by principles of judicial
15 consistency and fundamental fairness—compels the conclusion that disqualification is
16 warranted.

17 The stark inconsistency between RESPONDENT's articulated legal standards in *Dunham*
18 and his application of the law in the present case further demonstrates the appearance of
19 partiality that necessitates disqualification under § 455(a).

VI. IMMEDIATE HARM REQUIRING A TEMPORARY RESTRAINING ORDER

Plaintiff's constitutional rights face imminent, irreparable harm from Defendants' ongoing actions, necessitating immediate issuance of a temporary restraining order pursuant to Federal Rule of Civil Procedure 65(b). Without such intervention, Plaintiff will suffer permanent deprivation of fundamental constitutional rights, including:

1. **The Right to Equal Protection:** The Fourteenth Amendment's guarantee of equal protection is being systematically violated through disability-based discrimination that prevents Plaintiff from participating in the electoral process on an equal basis with non-disabled candidates. *See Tennessee v. Lane*, 541 U.S. 509, 522-23 (2004) (recognizing that "failure to accommodate persons with disabilities will often have the same practical effect as outright exclusion").

2. **The Right to Due Process:** The Fifth and Fourteenth Amendments' guarantee of due process is being violated through arbitrary procedures that deny Plaintiff notice and an opportunity to be heard in a meaningful manner. *See Mathews v. Eldridge*, 424 U.S. 319, 333 (1976) (emphasizing that "[t]he fundamental requirement of due process is the opportunity to be heard at a meaningful time and in a meaningful manner").

3. **First Amendment Rights:** Plaintiff's First Amendment right to petition the government for redress of grievances is being impaired through procedural obstacles that effectively prevent meaningful access to judicial remedies. *See Bill*

1 *Johnson's Restaurants, Inc. v. NLRB*, 461 U.S. 731, 741 (1983) (recognizing the
2 constitutional dimension of "the right of access to the courts").

3 **4. Electoral Participation Rights:** The fundamental right to participate in the
4 electoral process—a right the Supreme Court has recognized as "preservative of
5 other basic civil and political rights," *Reynolds v. Sims*, 377 U.S. 533, 562 (1964)
6 —is being systematically denied through discriminatory ballot access
7 requirements.

8 As the Supreme Court has unequivocally held, "The loss of First Amendment freedoms,
9 for even minimal periods of time, unquestionably constitutes irreparable injury." *Elrod v.*
10 *Burns*, 427 U.S. 347, 373 (1976). This principle applies with equal force to all
11 fundamental constitutional rights. *See, e.g., Melendres v. Arpaio*, 695 F.3d 990, 1002 (9th
12 Cir. 2012) (recognizing that "the deprivation of constitutional rights 'unquestionably
13 constitutes irreparable injury'" (quoting *Elrod*, 427 U.S. at 373)).

14 The traditional four-factor test for temporary restraining orders compellingly favors
15 Plaintiff:

16 **1. Likelihood of Success on the Merits:** The undisputed evidence demonstrates
17 systematic violations of constitutional and statutory rights, including violations of
18 the ADA, Section 504, and criminal civil rights statutes. The Supreme Court's
19 recent decision in *Trump v. Anderson*, No. 23-719, 601 U.S. (2024), provides
20 controlling precedent establishing that states cannot unilaterally impose additional
21 qualifications for federal office beyond those established in the Constitution.

1 2. **Irreparable Harm:** As established in *Elrod*, the deprivation of constitutional
2 rights constitutes irreparable injury per se. Moreover, the unique context of
3 electoral matters creates temporal constraints that make ordinary post-judgment
4 remedies inadequate. *See Williams v. Salerno*, 792 F.2d 323, 326 (2d Cir. 1986)
5 (recognizing that "the registration applicants would certainly suffer irreparable
6 harm if their right to vote were impinged upon").

7 3. **Balance of Equities:** The constitutional violations far outweigh any
8 administrative burden on Defendants. As the Supreme Court emphasized in
9 *Frontiero v. Richardson*, 411 U.S. 677, 690 (1973), "administrative convenience"
10 cannot justify practices that burden fundamental rights.

11 4. **Public Interest:** As the Ninth Circuit has definitively held, "it is always in the
12 public interest to prevent the violation of a party's constitutional rights."
13 *Melendres v. Arpaio*, 695 F.3d 990, 1002 (9th Cir. 2012) (internal quotation marks
14 omitted). The public interest is further served by ensuring that electoral processes
15 remain accessible to all qualified candidates, including those with disabilities.

16 The necessity for immediate intervention is underscored by the Supreme Court's
17 recognition in *Reynolds v. Sims* that "[t]he right to vote freely for the candidate of one's
18 choice is of the essence of a democratic society, and any restrictions on that right strike at
19 the heart of representative government." 377 U.S. 533, 555 (1964). The systematic
20 exclusion of qualified candidates with disabilities from the electoral process poses an

1 existential threat to these core democratic values that demands immediate judicial
2 intervention.

3 **VII. CONCLUSION AND PRAYER FOR RELIEF**

4 RESPONDENT's pattern of conduct—denying disability accommodations without proper
5 procedure, weaponizing these denials against Plaintiff, failing to enforce mandatory
6 statutory provisions, and systematically disregarding Plaintiff's rights as a crime victim—
7 creates both actual bias and the appearance of partiality that mandates disqualification
8 under 28 U.S.C. §§ 144 and 455. This conduct violates the bedrock principle articulated
9 by the Supreme Court that "justice must satisfy the appearance of justice." *In re*
10 *Murchison*, 349 U.S. 133, 136 (1955).

11 As Justice Felix Frankfurter powerfully articulated, "The guiding consideration is that the
12 administration of justice should reasonably appear to be disinterested as well as be so in
13 fact." *Public Utilities Comm'n v. Pollak*, 343 U.S. 451, 467 (1952) (Frankfurter, J.,
14 recusing). RESPONDENT's conduct in this case fails this essential test, rendering
15 disqualification not merely appropriate but essential to preserving both the reality and
16 appearance of impartial justice.

17 WHEREFORE, Plaintiff respectfully requests that this Honorable Court:

- 18 1. Issue a writ of prohibition IMMEDIATELY disqualifying RESPONDENT from
19 further involvement in Case No. 2:2025CV00404 pursuant to 28 U.S.C. §§ A144
20 and 455;

- 1 2. Reassign this case FORTHWITH to another judge who can provide fair and
2 impartial consideration of Plaintiff's claims;
- 3 3. Issue a temporary restraining order IMMEDIATELY against Defendants to
4 preserve Plaintiff's constitutional rights pending resolution of this case;
- 5 4. Order an expedited hearing on Plaintiff's request for preliminary injunctive relief;
- 6 5. Declare that Plaintiff is entitled to reasonable accommodations under the ADA
7 and Section 504, including additional time to file pleadings and responses;
- 8 6. Order the immediate implementation of appropriate accommodations to ensure
9 Plaintiff's meaningful access to judicial proceedings; and
- 10 7. Grant such other and further relief as this Court deems just and proper under the
11 extraordinary circumstances presented.

12 Dated: May 15, 2025

13 **Respectfully submitted,**

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15 _____



16 **Mathew Tyler; Plaintiff, Pro per pro se**

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VERIFICATION

I, Mathew Tyler, declare under penalty of perjury under the laws of the United States of America that the foregoing is true and correct to the best of my knowledge and belief.

Executed on May 15, 2025, at Butte County, California.



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